

control over safety at the worksite,” but it is fair to make the hirer liable if it “exercised the control that was retained in a manner that affirmatively contributed to the injury of the contractor’s employee.” (*Id.* at p. 210.) Under that standard, a general contractor contributes to an unsafe procedure or practice by its affirmative conduct, or by its omission, where the general contractor “is actively involved in, or asserts control over, the manner of performance of the contracted work,” or “if the hirer promises to undertake a particular safety measure,” and the negligent failure to do so leads to an employee injury. (*Id.* at pp. 212, 215.)

Perhaps more relevant is *Kinsman v. Unocal Corp.* (2005) 37 Cal.4th 659. In *Kinsman* an employee of an independent contractor that built and dismantled scaffolding used by other trades was exposed to airborne asbestos produced by those trades. In another exception to the *Privette* doctrine, the Supreme Court found that “where there is a known safety hazard on a hirer’s premises that can be addressed through reasonable safety precautions on the part of the independent contractor, . . . the hirer generally delegates the responsibility to take such precautions to the contractor and is not liable to the contractor’s employee if the contractor fails to do so.” (*Kinsman, supra*, 37 Cal.4th at pp. 673-674.) The Supreme Court went on to hold that “the hirer as landowner may be independently liable to the contractor’s employee, even if it does not retain control over the work, if: (1) it knows or reasonably should know of a concealed, preexisting hazardous condition on its premises; (2) the contractor does not know and could not reasonably ascertain the condition; and (3) the landowner fails to warn the contractor.” (*Id.* at p. 675.)

In this case, Defendants have not introduced any evidence indicating they did not know about, or should not have known about, the trench. Nor is there any evidence indicating Defendants warned the contractors about the condition. It is also not clear whether the contractors knew about the condition through other means or who even caused the trench to be dug and when, at least based on the moving papers. Defendants do not even suggest they did not dig the trench themselves.

To the extent Defendants knew about the trench, but their contractors did not, *Privette* does not apply because Defendants did not provide the contractors with the “critical information” they would need to fulfill their responsibilities. Furthermore, to the extent the trench was dug overnight and to the extent the incident happened in the morning on an unlit road, then for that period of time at least the trench would appear to be “concealed” given the darkness and how new and unknown the trench purportedly was. (Ornelas Depo. at p. 46 [no trench the “day” prior]; 117 [merely speculating about who dug the trench]; pp. 37, 110 and 113 [indicating it was dark and the roadway was not lit at the time]; see also Additional Fact No. 6 [roadway was the only way to reach the jobsite].)

To the extent they had knowledge of the trench but the contractors or Plaintiff did not, would have a duty of care and it was Defendants obligation to disprove that negligence theory. (*Kinsman v. Unocal Corp.* (2005) 37 Cal.4th 659, 674, as modified (Mar. 1, 2006) [“when the landowner knows or should know of a concealed hazard on its premises, then under ordinary premises liability principles, the landowner may be liable for a resultant injury to those employees”].) Defendants also fail to address whether the trench, even if an “obvious hazard, for which no warning is necessary,” still gave rise to a duty to “remedy the hazard because knowledge of the hazard is inadequate to prevent injury.” (*Kinsman v. Unocal Corp.* (2005) 37 Cal.4th 659, 674, as modified (Mar. 1, 2006); *Johnson v. The Raytheon Co., Inc.* (2019) 33 Cal.App.5th 617, 631-632.)

11. *Rosas-Higareda v. R&B Wholesale Distributors, Inc., et al*, Case No. CIVSB2432301
Plaintiff's Motion for Approval of PAGA Settlement
9/3/26, 9:00 a.m., Dept. S-17

Tentative Ruling

The Court's tentative is to **GRANT**.

Standards

Settlements under the Private Attorneys General Act (PAGA) at Labor Code sections 2698, et seq., do not require preliminary approval. The court must find, however, that the PAGA settlement is "fair, reasonable, and adequate in view of PAGA's purposes to remediate present labor law violations, deter future ones, and to maximize enforcement of state labor laws." (*Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, 77.) The court must find that the plaintiff "has adequately represented the state's interests, and hence the public interest." (*Id.* at p. 89.) The LWDA must be notified of the settlement and be given an opportunity to object.

The Court may look to parallel class action guidelines to determine what is "fair, adequate and reasonable." (*Kullar v. Foot Locker Retail* (2008) 168 Cal.App.4th 116, 126.) In that analysis, the court has "broad discretion in making this determination." (*In re Microsoft I-V Cases* (2006) 135 Cal.App.4th 706, 723.) Relevant factors may include "the strength of the plaintiffs' case, the risk, expense, complexity and likely duration of further litigation, the risk of maintain class action status through trial, the amount offered in settlement, the extent of discovery completed and the stage of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction of the class members to the proposed settlement." (*Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801.) This list of factors "is not exhaustive and should be tailored to each case." (*Ibid.*) The court may "engage in a balancing and weighing of factors depending on the circumstances of each case." (*Wershba v. Apple Computer, Inc.* (2001) 91 Cal.App.4th 224, 245 [overruled on other grounds].)

"Although the court gives regard to what is otherwise a private consensual agreement between the parties, the court must also evaluate the proposed settlement agreement with the purpose of protecting the rights of the absent class members who will be bound by the settlement." (*Wershba, supra*, 91 Cal.App.4th at p. 245, quoting *Dunk, supra*, 48 Cal.App.4th at p. 1801.) "The court must therefore scrutinize the proposed settlement agreement to the extent necessary to 'reach a reasoned judgment that the agreement is not the product of fraud or overreaching by, or collusion between, the negotiating parties, and that the settlement, taken as a whole, is fair, reasonable and adequate to all concerned.'" (*Ibid.*, quoting *Officers for Justice v. Civil Service Com'n* (9th Cir. 1982) 688 F.2d 615, 625.)

The settlement is entitled to "a presumption of fairness . . . where: (1) the settlement is reached through arm's-length bargaining; (2) investigation and discovery are sufficient to allow counsel and the court to act intelligently; (3) counsel is experienced in similar litigation; and (4) the percentage of objectors is small." (*Kullar v. Foot Locker Retail* (2008) 168 Cal.App.4th 116, 128, quoting *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1802.)

In this case, the Court finds the proposed PAGA settlement to fair, reasonable, and adequate. The amount of the settlement appears to be appropriate given the strength of Plaintiff's case and the risks involved in litigation. Adequate discovery and investigation occurred. There is no evidence of fraud or

collusion, and PAGA counsel are well-qualified to represent the aggrieved employees. The Court is unaware of any disqualifying features for the representative.

The Proposed Settlement

Here, Plaintiff originally submitted his letter to the LWDA on October 14, 2024. He filed this case initially as a wage-and-hour class action on October 24, 2024. After the exhaustion of administrative remedies, he filed the operative First Amended Complaint (FAC) on December 23, 2024, alleging violations related to (1) overtime; (2) meal periods; (3) rest breaks; (4) minimum wages; (5) final pay; (6) wage timeliness; (7) accurate wage statements; as well as (8) violation of the unfair competition law (UCL) and (9) civil penalties pursuant to the Private Attorneys General Act (PAGA). The UCL and PAGA claims are underpinned by the purported wage-and-hour violations. Importantly, Plaintiff dismissed the class claims on April 23, 2025. (Order, signed April 23, 2025.) Thus, the matter proceeded thereafter as a PAGA-only matter.

The parties have engaged in robust discovery, including the provision of a 20% sampling of time and payroll records. (Davis Decl., ¶¶18-20; Settlement, ¶41.) Thereafter, on November 19, 2025, the parties agreed to go to mediation with Tagore Subramaniam, an experienced neutral. (Davis Decl., ¶21; Settlement, ¶41.) The parties reached a settlement in the abstract, and they executed a Settlement by February of 2026. (Davis Decl., Exh. 2 [Settlement].) The Settlement covers all hourly, non-exempt employees who worked for Defendants in California during the period from October 20, 2023, through January 18, 2026. (Settlement, ¶22.) Notice of the Settlement was sent to the LWDA on June 25, 2026. (Davis Decl., Exh. 3.)

The settlement proposed the following terms: Defendant will pay a gross settlement amount of \$360,000.00, from which will be deducted (1) \$120,000.00 for attorneys' fees (1/3rd the gross); (2) \$18,465.10 for litigation costs; (3) \$7,500.00 for plaintiff's enhancement fee; and (4) \$4,750.00 for claims administration by Phoenix Settlement Administrators. Thus, there would be a net settlement of \$209,284.90, with 65%, or \$136,035.19, going to the LWDA, and 35%, or \$73,249.72, paid directly to the aggrieved employees on a pro rata basis determined by number of applicable pay periods worked. Notably, given the estimated 245 aggrieved employees, the average PAGA payout to the employees would be \$298.98.

The amount of the settlement is appropriate given Class Counsel's analysis of purported exposure [Davis Decl., ¶42] and the strength of plaintiff's case. Importantly, the reduction appears warranted in light of Defendant's various defenses. (See Davis Decl., ¶¶43-56.) Further, the settlement amount is appropriate given the risk of litigation and the risk of appeal even if Plaintiff were successful at trial. (*Ibid.*)

Adequate discovery and investigation occurred. There is no evidence of fraud or collusion. PAGA Counsel are well qualified to represent the class. The settlement was reached through an arms-length negotiation with the assistance of an experienced mediator.
